

TENTATIVE RULING

Case: **Angulo v. Mexifoods, Inc.**
Case No. CV2025-3311

Hearing Date: **May 6, 2026** **Department Eleven** **9:00 a.m.**

Defendant Mexifoods, Inc.’s (“defendant”) motion to strike the prayer for punitive damages in plaintiff Alex Alberto Landazury Angulo’s (“plaintiff”) first amended complaint (“FAC”) is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., §§ 435, 436; *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.) The Court finds that the FAC, read as whole, fails to allege facts sufficient to support a prayer for punitive damages against defendant. (Code Civ. Proc., § 3294, subds. (a), (c); *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042 [if the complaint is “devoid of any factual assertions supporting a conclusion [that defendant] acted with oppression, fraud or malice,” then punitive damages are properly stricken from the complaint]; *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872 [a complaint’s conclusory characterization of defendant’s conduct as intentional, willful, and fraudulent is patently insufficient statement of oppression, fraud, or malice within the meaning of section 3294]; see *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6; FAC, ¶¶ 53, 60, 66, 73, 82, 91, 104, 111, 153.) The Court also finds that the FAC fails to allege sufficient facts to support a claim for punitive damages against a corporate defendant. (Code Civ. Proc., § 3294, subd. (b); see *Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167 [to hold a corporate employer liable for punitive damages there must be proof of malice by a corporate leader, such as an officer, director, or managing agent]; FAC, ¶¶ 8, 17-25, 28-36, 53, 60, 66, 73, 82, 91, 104, 111, 153.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.